

**BEFORE THE NATIONAL GREEN TRIBUNAL
PRINCIPAL BENCH, NEW DELHI**

Original Application No. 985/2019

(With reports of Oversight Committee dated 23.12.2020
& State PCB dated 29.01.2021)

In Re : Water Pollution by Tanneries at Jajmau, Kanpur, Uttar Pradesh

With

Original Application No. 986/2019

In Re : Water Pollution at Rania, Kanpur Dehat & Rakhi Mandi,
Kanpur Nagar, Uttar Pradesh

Date of hearing: 08.02.2021

**CORAM: HON'BLE MR. JUSTICE ADARSH KUMAR GOEL, CHAIRPERSON
HON'BLE MR. JUSTICE SHEO KUMAR SINGH, JUDICIAL MEMBER
HON'BLE DR. NAGIN NANDA, EXPERT MEMBER**

Applicant: Ms. Katyayni, Adv. (Amicus Curiae)

Respondent(s): Mr. Amit Tiwari, Adv. for State of UP
Mr. Raj Kumar, Adv. for CPCB
Mr. Pradeep Misra, Adv. for UP PCB
Mr. I. K. Kapila, Adv. for UP Jal Nigam

ORDER

1. This order is in continuation of order dated 16.07.2020. This matter involves two issues. First issue relates to scientific disposal of Chromium dumps at Rania, Kanpur Dehat and Rakhi Mandi, Kanpur Nagar which have been in existence since 1976 and have *inter-alia* resulted in contamination of ground water adversely affecting the health and depriving the inhabitants of access to drinking water. Second issue relates to continuing water pollution by tanneries discharging untreated industrial effluents, containing toxic Chromium into the irrigation canal through inadequately functioning CETP at Jajmau, UP.

2. The status of compliance was reviewed on 15.11.2019 with reference to the report of the CPCB dated 30.10.2019 and earlier proceedings before this Tribunal. It was observed:

- “11. It is undisputed that Chromium dumps containing toxic hexavalent Chromium (as mentioned in the report of the CPCB quoted above) has been in existence since 1976 and requisite steps have not been taken so far to dispose of the same as per mandate of law. Chromium is considered to be an environmentally hazardous element and classified as class-A human carcinogen.¹ Hexavalent Chromium Cr (VI) is toxic and the World Health Organization (WHO) has classified it as carcinogenic and can cause stomach ulcers and cancers and severe damage to kidneys and liver.² The industries responsible for generating the said dumps were closed in the year 2005. The SPCB has assessed liability of environmental compensation of Rs. 280.01 crore only on 24.10.2019. There is no explanation why no such step was taken against the said industries earlier. We may note that this Tribunal has been issuing directions for shifting of the Chromium dumps but the State of UP has failed to do so. The direction of this Tribunal has already been quoted above from the order dated 22.08.2019 (para 24). Such directions were also issued earlier vide order dated 13.07.2017.
12. **From the above, it is clear that there is failure on the part of State of UP and its authorities in disposal of the Chromium dumps which is hazardous to the public health and the environment and the proposal now mentioned in the report of the Chief Secretary, UP is for in-situ remediation though earlier stand of the State of UP was to shift the Chromium waste to the Treatment Storage and Disposal Facility (TSDF) for hazardous waste as per Hazardous Waste Management Rules, 2016.** The fact remains that the problem has not been tackled for the last 43 years and it has resulted in contamination of ground water affecting the health and life of the inhabitants and fauna. Compensation has been assessed only in the year 2019 without it being clear whether there is a chance of actual recovery of the same. There is no explanation for earlier inaction by the State of UP and the UPPCB.
13. For this failure, under the Public Trust Doctrine, the State is liable to deposit the said assessed amount in an ESCROW account for restoration of environment and the public health in the area. Such deposit may be made within one-month from today. The amount may be spent after preparation of an action plan by the District Magistrates and the SPCB with the approval of the CPCB. The ESCROW account will be operated by the

¹ <http://www.isca.in/rjcs/Archives/v7/i7/7.%20ISCA-RJCS-2017-024.pdf>

² https://www.who.int/water_sanitation_health/waterquality/guidelines/chemicals/chromium.pdf

concerned District Magistrate in terms of action plan. The State will be at liberty to recover the amount from the erring industries and/or from the erring officers who failed to take necessary action.

For measures to be adopted to utilize the amount, it will require a credible study of the health issues in the area. This may be done by an Expert Committee comprising representatives from (1) S.N. Medical College, Kanpur, (2) PGI Lucknow, (3) RML Lucknow and (4) a nominee of Secretary, Health, Ministry of Health, Govt. of India. The nodal agency will be the Principal Secretary, Medical & Health, UP.

- 14. With regard to supply of potable water in the affected areas, such supply should take care of not only drinking purposes but also other purposes. It is well known that adverse effect on health is not only by drinking contaminated water but also on account of bathing or cooking and also on account of it being part of the food chain. It is necessary to put the concerned inhabitants in the area to notice of adverse consequences of use of contaminated water and placing the data of contents of water quality on website of the State. The affected area should also be delineated and put in public domain.*
- 15. PWS must be established as is said to have already been directed by the State expeditiously positively from 01.03.2020. Since in Rakhi Mandi pipe carrying potable water is already available, such supply may be made operational positively by 15.01.2020 i.e. within two months, which is the timeline proposed by the State itself in its affidavit.*
- 16. With regard to illegal permission granted by the Principal Secretary, Urban Development on 08.08.2019 for release of large quantity untreated sewage directly into river Ganga on the ground of cleaning trunk sewer, the explanation furnished cannot be accepted as no assessment of pollution load and its constituents was made. It was not considered that the sewage/effluents had highly toxic Chromium content. Its impact on recipient water of river Ganga and the downstream inhabitants who will use such water was not considered. The action taken cannot by any standards be considered to be a responsible action of a welfare State and shows total apathy for the environment and the health of the inhabitants and the rule of law.
Moreover, it is only after the order of this Tribunal that a decision has been taken to close operation of 122 tanneries which were discharging untreated industrial effluents with hazardous contaminants in irrigation channel through CETP and thereafter directly in the River Ganga as CETP did not have the requisite capacity. This action has been taken only on 01.10.2019. Tannery industries in India are contributing high Chromium contamination to the environment. These industries of India alone are reported to contribute about 2000-3000 tonnes of Chromium contamination to the environment in which*

Chromium concentration ranges from 2000- 5000 mg/L in the aqueous effluent.³

17. *The stand of the State of UP shows that it is being understood in certain quarters that during monsoon any pollution load, including sewage or any other polluting effluents can be discharged in the water bodies/ rivers which is clearly against the mandate of Section 25 of the Water (Prevention and Control of Pollution) Act, 1974. The CPCB may need to issue an appropriate direction to ensure that such illegality does not take place anywhere in the country.*
18. *The State of UP has to be held liable to pay compensation to the extent of Rs. 10 Crores for violation of law affecting the environment and public health for illegally permitting discharge of sewage and other effluent containing toxic Chromium directly into river Ganga. The quantum of compensation is being fixed having regard to the magnitude and nature of pollutant. The report of the Chief Secretary in para 12 clearly accepts that the effluents of 122 operational tanneries now closed from 01.10.2019 was part of the discharge on account of stoppage of flow of effluents in CETP. Further in para 13 it is stated that UP Jal Nigam was allowed to discharge effluents into river Ganga pending cleaning of trunk sewer and non-functioning of STP. Annexure 9 to the affidavit which is a report of the Principal Secretary, Urban Development mentions that the trunk sewer of dia. of 2100x2300mm was required to be cleaned which had capacity to carry 100 MLD sewage to cluster of STP of 205 MLD capacity. Main sewer line was damaged by tanneries mixing industrial waste into domestic waste which increased load for treatment on STP. This led to mixing of Chromium in sewage water rendering sludge unusable and harmful for the agricultural fields. Liability of any authority undertaking hazardous activity having potential for injury to environment and public health is well known.⁴ Principles for determining quantum are well settled.⁵ Compensation has to be approximate to the cost of restoration and where exact data is not available, broad approximation having regard to attending circumstances is permissible. We have fixed the quantum in the light of these well-known principles.*

Even if adequate dilution was available, the pollution load that too loaded with toxic Chromium is undoubtedly bound to affect the water quality at one or other place and has potential to endanger the health and lives of people. The Principal

³ Dhal B., Thatoi H.N., Das N. and Pandey B.D. (2013). Chemical and microbial remediation of hexavalent chromium from contaminated soil and mining/metallurgical solid waste: A review. *Journal of Hazardous Materials*, 250, 272-291

⁴ M.C. Mehta vs. Union of India 1987 (1) SCC 395

⁵ Sterlite Industries (India) Ltd. v. Union of India (2013) 4 SCC 575 : ¶ 47, T.N. Godavarman Thirumulpad v. UOI & Ors. (2006) 1 SCC 1 : ¶ 1, Indian Council for Enviro-Legal Action & Ors. v. Union of India & Ors. (1996) 3 SCC 212 : ¶ 67, Vellore Citizens Welfare Forum v. UOI , (1996) 5 SCC 647 : ¶ 11 to 13, M.C. Mehta v. Kamal Nath (1997) 1 SCC 388 : ¶ 10 , Public Trust Doctrine, ¶ 24, M.C. Mehta v. UOI & Ors., W.P (C) No. 13029/1985 order dated 24.10.2017, MCD v. Uphaar Tragedy Victims Association (2011) 14 SCC 481 : ¶ 99, 100, Vadodra Municipal Corporation v. Purshottam v. Murjani & Ors. (2014) 16 SCC 14 : ¶ 17 and M. C. Mehta & Anr. v. Union of India (1987) 1 SCC 395 : ¶ 32.

Secretary, Urban Development had no legal jurisdiction to permit such illegality in violation of Section 25 of the Water (Prevention and Control of Pollution) Act, 1974.

The UPPCB, unfortunately, has not taken any action against such illegality and against polluting 122 tanneries for a long time for which the UPPCB has to be held liable to pay compensation of Rs. 1 Crore.

The UP Jal Nigam is also liable for such neglect as it released untreated large quantity of sewage containing toxic Chromium in river Ganga. UP Jal Nigam is held liable for environment compensation of Rs. 1 Crore. The said amounts may be deposited with the CPCB within one month from today which may be overseen by the Chief Secretary, UP. The State of UP will be at liberty to recover the amount from the erring officers, apart from taking appropriate disciplinary or other departmental action in accordance with law.

19. We may now sum up our directions as follows:

- i. *The State of UP is held liable for failing to take any action for shifting of Chromium dumps at Rania and Rakhi Mandi which resulted in damage to the environment and the public health for the period from 1976 till date. The amount of compensation in this regard is held to be the amount assessed by the UPPCB to be recovered from the erring industries. Till such recovery, the State itself must pay the amount by way of transfer to an ESCROW account. The amount is to be utilized for restoration of the environment and the public health in the area in the manner mentioned earlier. The State of UP is at liberty to recover the amount from the erring industries or erring officers as already mentioned in para 13 above.*
- ii. *The State of UP must take further steps for disposal of the hazardous Chromium dumps as per directions of this Tribunal dated 22.08.2019 quoted above, failing which it will be liable to pay compensation as mentioned in the said order.*
- iii. *State of UP is held liable to pay environmental compensation of Rs. 10 crores for damage to the environment for permitting discharge of untreated sewage containing toxic Chromium into river Ganga directly vide its order dated 08.08.2019. The State of UP is at liberty to recover the amount from the erring officers apart from taking action against the persons responsible in the manner as already mentioned in para 18 above. The UPPCB is held liable to pay sum of Rs. 1 crore for ignoring illegal discharge of sewage and other effluent containing toxic Chromium directly into river Ganga and taking action after a long time in spite of earlier proceedings before this Tribunal. UP Jal Nigam is held liable to pay sum of Rs. 1 crore for*

releasing untreated large quantity sewage containing toxic Chromium in river Ganga. These amounts may be deposited with the CPCB within one month which may be overseen by the Chief Secretary, UP. UPPCB is at liberty to recover the amount from the erring industries.

- iv. The State of UP may take steps for supply of potable water to the inhabitants of the area and other steps as already mentioned in paras 13 to 15 above.*
 - v. The Expert Committee in terms of para 13 above may conduct the health survey within three months.*
 - vi. CPCB may issue appropriate directions to ensure that no authority allows discharge of polluted sewage or polluted effluents directly into a water channel or stream in violation of law even in monsoon and also the standards for faecal coliform are duly maintained.*
- 20. Compliance report of the above directions may be filed by the Chief Secretary, UP before the next date by e-mail at judicial-ngt@gov.in.”*

3. The matter was last considered on 16.07.2020 in the light of the reports of the Chief Secretary, UP dated 04.02.2020 and 11.06.2020 and report of CPCB dated 14.07.2020 which were dealt with as follows:-

“1to3.....xxx.....xxx.....xxx

4. *The report of the Chief Secretary, U.P is that an action plan has been prepared for restoration of the environment and certain steps have been taken for supply of water to the inhabitants. Further report dated 11.06.2020 is that the matter of remediation is at the tender stage. The report of the CPCB is of a general nature.*

5. The fact remains that the chromium dump containing toxic chemicals has not been shifted to the TSDF as required under the law for which failure of the State of U.P is continuing inspite of repeated directions showing lack of sensitiveness on the part of the concerned officers. Hazard to public health and environment continues. The process of remediation can only start only after shifting of the waste to operational TSDF.

6. Having regard to the seriousness of the consequences for continued delay on one pretext or other, we direct the Chief Secretary, U.P to ensure prompt action on priority basis in a time bound manner which may be personally monitored by the Chief Secretary, U.P. The Committee constituted by this Tribunal headed by Justice S.V.S. Rathore, former Judge of the Allahabad High Court may also oversee the compliance of this direction and give its independent report by e-mail at judicial-ngt@gov.in preferably in the form of searchable PDF/ OCR Support

PDF and not in the form of Image PDF. It is made clear that the Tribunal may have no other option except to take coercive measure for any further default by the State of U.P. Compliance status as on 31.10.2020 may be reported to this Tribunal before the next date by e-mail at judicial-ngt@gov.in preferably in the form of searchable PDF/ OCR Support PDF and not in the form of Image PDF.”

4. Accordingly, further reports have been filed by the Oversight Committee dated 11.09.2020 and 23.12.2020 and by the State of UP on 29.01.2021. It will be suffice to refer to the latest report of the Oversight Committee dated 23.12.2020 giving the compliance status and making recommendations as follows:-

“Summary of the compliance status

S. No.	Directions issued by Hon’ble NGT	Concerned Department	Compliance status
1.	Status of lifting and remediation of Chromium dump at Rania, Kanpur Dehat by the TSDF operators	UPSIDA	Non-complied The lifting of Chromium dump has not started yet. Letters have been sent to NEERI, IIT Kanpur, IIT Roorkee, IIT BHU, and IIT Delhi to provide consultancy regarding tender conditions and estimations and decision will be taken once the proposals are received by the said institutes.
2.	Status of ETPs/CETPs installation to prevent untreated discharge of industrial effluents in river Ganga and its tributary	UPJal Nigam	Partially complied A 20 MLD CETP is being constructed in Jajmau. The tender processing is done and around 10 percent work is completed, and rest is under process. The construction of CETP will be completed by 31st December, 2021.
3.	Status of health survey by the Health Department	Health Department	Partially complied Health Department has submitted a detailed survey report undertaken in Rania and Rakhi Mandi areas. While, no details are provided in case of Jajmau area. Health Survey must be conducted at least twice a month.
4.	Steps taken for the supply of potable water to the residents of the affected area.	UP Jal Nigam	Complied Safe water is being provided to all the four hamlets viz. Chauhanpurva, Palpurva, Yadavpurva and Prasiddhipura of the village Khanchandpur, Rania.
5.	Status of recovery of EC: UP Jal Nigam is held liable to pay a sum of Rs. 1 Crore for	UP Jal Nigam	Non-complied UP Jal Nigam has filed a Civil appeal on 07.08.2020 before the Hon’ble Supreme Court against the said order

	releasing untreated large quantity sewage containing toxic chromium in river Ganga		of the Hon'ble Tribunal and is waiting for the decision of the Hon'ble Supreme Court which is listed on 06.01.2021. However, till date no order has been passed in favour of UP Jal Nigam.
6.	Status of recovery of EC: The UPPCB is held liable to pay sum of Rs. 1 Crore for ignoring illegal discharge of sewage and other effluent containing toxic Chromium directly into river Ganga and taking action after a long time inspite of earlier proceedings before this Tribunal. The State of UP has to pay compensation to the extent of Rs. 10 Crores for violation of law affecting the environment and public health for illegally permitting discharge of sewage and other effluent containing toxic Chromium directly into river Ganga.	UPPCB	Non-complied Till date no EC has been paid by UPPCB
7.	Status of recovery of EC on erring industries	UPPCB	Partially Complied A show-cause notice has been issued for the recovery of EC of Rs. 280.01 Crore imposed on 6 erring industries. Out of 280.01 Crores, 23.44 crore has been deposited in ESCROW account of DM, Kanpur Nagar by the Industrial Development Department. The remaining EC will be deposited by UPPCB after the recovery of EC from 6 erring industries. RC has already been issued against erring industries for the recovery of EC

RECOMMENDATIONS

In view of the above, we recommend as follows:

1. With regard to the safe disposal of chromium dump at Rania, Kanpur as ordered by Hon'ble Tribunal in O.A. No. 200/2014 in RE: M.C. Mehta vs Union of India & Ors., neither a single truck load has been shifted to the nearby operational TSDF nor the penalty for non-compliance of this order has been paid. **The Chief Secretary, UP may be directed to take concrete actions regarding shifting of chromium dumps and sort out the matter immediately. He may also fix the responsibility for inaction. The committee further recommends serious action in this matter against the concerned officers. Such action may be by giving adverse entries to them and also to initiate disciplinary proceedings against the officers concerned.**

2. In regard to the EC imposed on UP Jal Nigam and UPPCB for illegal discharge of untreated sewage into river Ganga, so far, no amount has been deposited. The concerned departments UPPCB and UP Jal Nigam may be directed to deposit the said amount without any further delay. However, the said amount may be subjected to the final outcome of the Civil Appeal filed by UP Jal Nigam in the Hon'ble Apex Court.

3. EC of Rs. 280.01 .Cr has been imposed on 6 erring industries which has not been recovered so far. The SPCB may be directed to invoke Recovery Certificates (RCs) and follow up vigorously for recovery of EC from these units. The State Government has in the meanwhile sanctioned Rs 23.44 Crores from its budgetary resources. The State Government may also be directed to take stringent measures in recovery of this amount and use this amount in remediation of the contaminated areas.

4. As far as the health surveys are concerned in the contaminated areas, the Health Department has submitted a report on 11.12.2020 and 15.05.2020 which are indicative in nature. Principal Secretary, Directorate of Health, UP may be directed to conduct a comprehensive study and prepare an action plan so as to ascertain the exposure and health effects caused due to chromium dump in the nearby areas, and efforts for mitigation and prevention of its ill-effects at the earliest.

5. In order to prevent the violations in pollution norms, a 20 MLD CETP is under construction in Jajmau. UP Jal Nigam may be directed to expedite the construction of CETP so that it gets completed in time bound manner.

6. There needs to be 24x7 monitoring of effluent treatment in such clusters. Already 122 tannery units in Kanpur have been closed down for violation of Pollution norms. The CETPs of such clusters be connected with the Central Control Room at Lucknow through OCEMS for 24x7 monitoring of environment parameters.

7. Reverse boring is another important area that needs to be addressed, especially in environmentally sensitive areas like tannery clusters which are vulnerable to ground water contamination on the sly. The tendency of some units to discharge their effluents by boring a hole in the ground, thereby contaminating ground water needs to be quelled with deterrent punishment. CGWA/SGWA may be directed to take actions in this regard. The CGWA/SGWA field machinery needs to be strengthened where the complaints of groundwater contamination are plenty. A shallow borewells may be installed around such areas and regular monitoring of groundwater quality from those borewells may be undertaken so as to have a check on contamination levels. Alternately, hydrogeological contamination studies may also be carried on in such areas.

8. The Urban Development Department may be directed to identify and mark Buffer Zone around the Chromium dump areas.

9. To ensure the proper chromium management practices in tannery clusters/units, the industries may be directed to install chromium recovery plants based on Tamil Nadu model and implement the recovery and reuse techniques. Also, norms should be very stringent for discharge of untreated sewage into the drains/rivers.

10. While several alternatives to chrome-based tanning is available, the industries may be directed to

exploit the techniques of chrome-free or blending of chrome with other minerals for tanning purposes. Moreover, the industries must partner with research institutes to develop such alternatives.

11. The use of titanium instead of chromium in tanning process may result into light and strong leather which is also biocompatible with human tissues as proposed by project "TILEATHER" in EU. Such researches may also be promoted in India to develop chrome free leather production.

12. The strategies of bioremediation using chromium tolerant bacteria and/or phytoremediation using hyper accumulating plants may be promoted as post chromium dump cleaning process to prevent the leaching of contaminant in soil and water.

13. The approaches such as "Microbial-based Phytoremediation" which is based on the association of metal tolerant bacteria in rhizosphere of hyper accumulating plant may also be undertaken as post chromium treatment in highly contaminated environment.

14. Researches may be promoted for alternative use of solid wastes from tannery industries. Among the main applications of solid tannery wastes, the following stand out production of adsorbent materials, biodiesel, biogas, biopolymers, applications in agriculture and other applications involving extraction/recovery of compounds of industrial/commercial interest, isolation of microorganisms and production of enzymes and applications in the animal diet.

15. The approach of secondary recycling may be explored for recovery of resources and value-added products synthesis from chromium rich wastes such as cements, abrasives, glass, tiles, bricks, and pigments.

16. In order to prevent the bioaccumulation and bio magnification of chromium or other metals in the area, Health Department may be directed to carryout soil metal analysis in the agricultural lands near to the tannery industrial areas."

5. The report filed on 29.01.2021 on behalf of the State UP in response thereof is as follows:-

"1&2.....xxx.....xxx.....xxx

3. Further, the Chief Secretary, Government of U.P. has also reviewed the status of compliance through review meetings of the officials of concerned Departments on 09.07.2020 and 02.12.2020. The Chief Secretary, Government of U.P. also reviewed the Status of compliance of observations/ recommendations made by the Oversight Committee through its report dated 23.12.2020 on 28.01.2021. Copies of the minutes of meetings dated 09.07.2020, 02.12.2020 & 28.01.2021 are enclosed herewith and marked as Annexure No. 1, 2 & 3.

4. In the review meetings, the status of compliance of the directions regarding disposal of chromium waste at Khanchandpur, Rania, Kanpur Dehat was discussed and following progress has been observed:-

a. That Uttar Pradesh State Industrial Development Authority (UPSIDA) has invited e-tenders three times for disposal of chromium waste dumped near Village Khanchandpur, Rania, but only one bid was received and the cost mentioned by bidder was more than the estimated cost in the DPR prepared by CPCB. Therefore, the bids were not approved.

b. NEERI, IIT Kanpur, IIT Roorkee, IIT BHU, and IIT Delhi to provide consultancy regarding revised tender conditions and cost estimations etc. The decision will be taken by UPSIDA after the proposals are received from the said institutes. UPSIDA further informed in the meeting that Indian Institute of Technology, Kanpur (IIT, Kanpur) has given acceptance to provide consultancy regarding tender conditions and cost estimations. Fresh tender will be floated on the basis of revised tender conditions and cost estimations suggested by IIT, Kanpur.

c. That the Chief Secretary, Government of U.P. has directed in the review meeting dated 28.01.2021 that UPSIDA will get the report regarding technology, cost estimates and tender document prepared by IIT, Kanpur expeditiously within one week. After that the report shall be technically examined by the technical committee under the Co-chairmanship of Secretaries of Environment, Forest and Climate Change and Department of Infrastructure and Industrial Development UPSIDA shall call tender on the basis of technical approval of the Committee expeditiously, so that the work may be started.

d. **That Piped Water Supply (PWS) to the residents of affected area of Rakhi Mandi, Kanpur Nagar was commissioned on 15.01.2020. Safe Water Supply through PWS is being provided since then continuously to inhabitants of the affected area through 2510 meter pipe line and 225 household connections.**

e. That supply of safe water to the residents of village Khanchandpur, Rania through Piped Water Supply System has been started since 15th July, 2020.

f. That in compliance to the directions regarding health survey in affected areas, **the Expert Committee constituted by Hon'ble Tribunal has submitted its preliminary assessment report after visiting the sites along with the methodology for Comprehensive Baseline Assessment and Mitigation Measures on 28-12-2019. Final report of Committee regarding Comprehensive Baseline Assessment and Mitigation Measures is awaited. Director, Medical & Health Services has informed that in village Khanchandpur health camps were organized every Saturday and Sunday from 02-02-2020 to 14-03-2020 and no signs of the adverse health effects of chromium were found on the patients examined during health camps. The Chief Secretary, Government of U.P. has directed in the review meeting dated 28.01.2021**

that the Principal Secretary, Medical and Health shall ensure the submission of report regarding Comprehensive Baseline Assessment and Mitigation Measures within one month.

5. That it is submitted that UP Pollution Control Board had imposed Environmental Compensation of Rs. 280.01 Crore against 06 defaulting industries on 19-11-2019 and Recovery Certificates (RCs) against the above 06 defaulting industries were issued as submitted in the previous compliance report. It is further submitted that the industries responsible for illegal dumping of chromium waste had filed Original Application Nos. 18, 19, 20, 21 and 22 of 2020 before Hon'ble Tribunal for getting relief against imposition of environmental compensation by Uttar Pradesh Pollution Control Board. That Hon'ble Tribunal has disposed off all the connected cases vide its order dated 28.01.2020 with the following direction:- "Without expressing any opinion on merits, we direct that the impugned orders may be treated as a proposal with reference to which the applicants may furnish their response to the UP State PCB within two weeks. The UP State PCB may consider the objections of the applicants and pass an appropriate order within four weeks thereafter dealing with the matter on merits, in accordance with law".

That it is submitted that prior to imposition of environmental compensation upon the industries in question, the Uttar Pradesh Pollution Control Board (UPPCB) had issued the Show Cause Notices to these industries dated 24.10.2019 whereby time of 15 days was allowed to said industries for submitting their reply but none of the said industries submitted their reply in the time specified in the Show Cause Notice issued by UPPCB. Therefore, the environmental compensation was imposed on 19.11.2019 against the industries in question. Thus, the industries have obtained above order by concealing the facts before the Hon'ble Tribunal. Though U.P. Pollution Control Board had filed an application for modification of order dated 28.01.2020, yet UPPCB has considered the representation of said industries in compliance of Hon'ble Tribunal order dated 28.01.2020, in interest of justice and the Environmental Compensation imposed earlier against these industries had been reconfirmed through reasoned order dated 28.05.2020 after considering their representations. The copies of the said orders dated 28.05.2020 are enclosed herewith and marked as Annexure Nos.- 4, 5 6 7 & 8.

6. That it is further submitted that the industries responsible for illegal dumping of chromium waste filed Appeal Nos. 14, 15, 16, 17 and 18 of 2020 before Hon'ble Tribunal for getting relief in the matter of imposition of environmental compensation against them by Uttar Pradesh Pollution Control Board. That Hon'ble Tribunal has given following directions vide its order dated 04.01.2021 and has listed it for final hearing on 27.07.2021:-

"The persons responsible for dumping such hazardous waste, which has contaminated the ground water to the detriment of the inhabitants, cannot disown responsibility for liability for such damage on the ground of inaction of the authorities or closing of the companies. Corporate veil may not be a defence to absolute liability for damage to environment. Of course, the liability of appellants has to be limited to the violations clearly

attributable to them. **The State PCB must determine such liability specifically, after due opportunity to the appellants, preferably within a period of three months and till this is done, further coercive measures may not be taken.** It is made clear that any further proceedings will be subject to further orders.

5. The above observations are for interim relief and are subject to final order after further consideration. Applications for interim relief will stand disposed of accordingly."

That it is submitted that UPPCB has again given due opportunity to the appellants as per order of the Hon'ble Tribunal dated 04.01.2021 and will dispose of the appeals after due hearing as per law.

7. That the ESCROW account has been opened by District Magistrate Kanpur Dehat, for deposition of funds to be utilized for removing the dumped hazardous waste and restoration of the environment and the public health. State Government has transferred amount of Rs 23.44 Crore to the ESCROW account on 27.03.2020. The rest amount for remediation of chromium dump site Khanchandpur, Rania, Kanpur Dehat, could not be deposited in the ESCROW account due to non-recovery of Environmental Compensation imposed against the 06 industries, as they have obtained stay from the Hon'ble NGT on 28.01.2020 and 04.01.2021."

8. The submission of learned Amicus Curiae are:-

"1. That the Central Ground Water Board may be directed to do a detailed mapping of the impugned area. Because the contamination has continued unabated since 1976, a larger area may be at serious risk of Chromium pollution.

The water supply project sanctioned for Rania, Kanpur Dehat includes 2 tubewells for extraction of groundwater (as per Chief Secretary Compliance Report, pg. 3, para 10). It is therefore, important for CGWB to conduct a detailed survey of Kanpur District and mark zones according to current groundwater quality.

2. That Emergency Action needs to be taken for checking further leaching of Hexavalent Chromium due to coming Monsoons. The open dump site has to be covered (waterproofed) and bunds/ boundaries should be constructed around it to avoid inundation of rain water.

The Hon'ble Tribunal had passed the following directions vide order dated 15/11/2019 that:

"17. The stand of the State of UP shows that it is being understood in certain quarters that during monsoon any pollution load, including sewage or any other polluting effluents can be discharged in the water bodies/rivers which is clearly against the mandate of Section 25 of the Water (Prevention and Control of Pollution) Act, 1974. The CPCB

may need to issue an appropriate direction to ensure that such illegality does not take place anywhere in the country.”

3. That the water supplied to Rania, Kanpur Dehat must be checked for quality and quantity assessment (as it is still provided @ 5 tankers/day). It may not be safe to provide drinking water directly from tubewells. According to the Compliance Report dated 11/6/20 by Chief Secretary,

“The safe water supply to the affected areas by direct pumping of the tubewells is proposed to be started by 15th July 2020.”

4. That it is pertinent to bring to your kind notice, order dated 15/11/2019, (para 14, pg 10) wherein the Hon’ble Bench directed that:

“14. With regard to supply of potable water in the affected areas, **such supply should take care of not only drinking purposes but also other purposes. It is well known that adverse effect on health is not only by drinking contaminated water but also on account of bathing or cooking and also on account of it being part of the food chain.** It is necessary to put the concerned inhabitants in the area to notice of adverse consequences of use of contaminated water and placing the data of contents of water quality on website of the State. The affected area should also be delineated and put in public domain.”

The State must provide water not only for drinking but for other household activities and cattle feeding.

The impugned area should be delineated and dangers of such contamination may be displayed at public places to generate awareness amongst the residents & tourists.

5. That Action Plan for removal of Chromium waste should incorporate **Occupational Hazard**, as mining of legacy waste and transportation may expose workers/ labourers to serious health risk.

6. That Status Report on sealing of handpumps/ tubewells in the impugned area may also be furnished.

7. That the Hon'ble Tribunal had passed directions to specify norms for Tender processes. This must be executed with immediate effect to avoid further delay in starting restoration projects.

8. That the Hon'ble Tribunal vide order dated 27/9/19 had directed that:

“13. (ii) The Chief Secretary, UP, may ensure that untreated sewage is not discharged in River Ganga and pending a permanent solution, at least temporary arrangement by way of phytoremediation, bio-remediation or any other technology is done to disinfect/ treat water before the same is discharged into the River Ganga.”

Similar direction was reiterated vide order dated 15/11/19, that:

“19 (vi) CPCB may issue appropriate directions to ensure that no authority allows discharge of polluted sewage or polluted effluents directly into a water channel or stream in violation of law even in monsoon and also the standards for faecal coliform are duly maintained.”

As noted above, Status Report on temporary arrangements of disinfecting drains/ water bodies may also be submitted by the State. It is most urgent to treat streams/ drains before monsoons to avoid discharge of pollutants in River Ganga.

9. *That the Compliance Report of CPCB (dated 14/7/20) noted that:*

“It is submitted that none of the authorities have yet deposited the levied Environmental Compensation with CPCB till date as per the direction of Hon’ble NGT.” (as was directed vide order dated 15/11/2019).”

9. During the hearing, it is pointed out by learned Amicus that from the website of the UP State PCB it is clear that apart from the above hazardous dump sites, there are other dumps as follows:-

1. Nauraiya Khera-Kanpur
2. Juhi Bahuraiya-Kanpur
3. Panki Industrial Area – Kanpur
4. India Pesticides Ltd, Deva Road- Lucknow

Details of the above are as follows:-

1. Nauraiya Khera-Kanpur

- Ground Water contaminated due to chromium.
- Industries nature- Steal welding, Electroplating, Powder coating, Metal Phosphating, Sodium hypochlorite trading unit, Lead Acid Batteries. Site used for dumping for last 20-25 years.
- Area-600 Sq. ft.

2. Juhi Bahuraiya-Kanpur

- Water at Juhi Baburaiya contaminated upto 100 feet & 60-70 feet slightly yellow and greenish.
- Water at 120 feet was found clear.
- Industries nature – Mainly BCS industries,
- Area 5-6 acre land.

3. Panki Industrial Area – Kanpur

- Water upto 50 feet contaminated.

- Nature of Industry- Dyes, Foundries, Tannery, Cotton, Textile, Carpet.
- Site coverage- 10 acre of land

4. India Pesticides Ltd., Deva Road- Lucknow

- Nature of Industries – Pesticide (technical).
- Area covered- 2 acre.
- No more pesticide waste is dumped.

10. It has also been pointed out that there are reports of mercury being present in ground water which necessitates cumulative impact study of the area in terms of possible adverse effect on food safety and health. There is also need for multispecialty health facilities for the affected inhabitants. Even though as per earlier health studies there is no adverse effect seen, in reality people are suffering from Cancer, Diabetes and other diseases on account of pollution. The study, thus, needs to be more credible.

11. Accordingly, in the light of above discussion, the State of UP may take further remedial action. Remediation of hazardous waste sites departmentally may be explored, as tender process has not succeeded in the last several years and the dump sites have been in existence for the last 45 years which continue to be hazard to the lives of the inhabitants. The additional sites pointed out above may also be remediated. This needs to be tackled on emergency basis at the highest level in the State and monitored at the level of the Chief Secretary and also the Oversight Committee. CPCB may be consulted in the process for the remedial action which should be as per rules. The action plan may also ensure provision for water supply to all affected areas. Further, it must be ensured that contamination does not affect the food chain. The stand of the State of UP with regard to compensation is not as per earlier order dated 15.11.2019, para 13. If the amount is not recovered from the companies for want of

effective legal steps for recovery within reasonable time, liability of the State for its negligence and inaction will continue.

12. The report discussed above, only relates to scientific disposal of chromium dumps at three locations. Nothing is mentioned about the second issue of continued pollution by tanneries as well as discharge of untreated sewage into the irrigation canals and drains at and around Jajmau. Requisite remedial action may now be taken expeditiously and a report furnished alongwith the further action taken report on remediation of dump sites with compliance status as on 30.06.2021, by 15.07.2021 by e-mail at judicial-ngt@gov.in preferably in the form of searchable PDF/ OCR Support PDF and not in the form of Image PDF.

List for further consideration on 04.08.2021.

A copy of this order be forwarded to the CPCB, Chief Secretary, UP, UP State PCB, and the Oversight Committee headed by Justice S.V.S. Rathore, former Judge of the Allahabad High Court by e-mail for compliance.

Adarsh Kumar Goel, CP

S.K. Singh, JM

Dr. Nagin Nanda, EM

February 08, 2021
O.A. Nos. 985/2019 & 986/2019
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